

Rangareddigari Ramakantha Reddy vs Yellamreddy Sruthi on 3 February, 2022

Author: C. Praveen Kumar

Bench: C. Praveen Kumar

IN THE HIGH COURT OF ANDHRA PRADESH AT AMARAVATI
THURSDAY, THE THIRD DAY OF FEBRUARY, TWO THOUSAND AND TWENTY TWO
: PRESENT :
THE HONOURABLE SRI JUSTICE C. PRAVEEN KUMAR
THE HONOURABLE DR JUSTICE K. MANMADHA RAO

LA Nag. TP of 2019 and 1 of 20271
:

PANO. tof 2019 :-

Between

Rangareddigari Ramakantha Reddy, 9/ 0. Late M.C. Ranga Reddy,
R/o, D.No. 12-1-422, Ashok Nagar, 1st Cross, Ananthapuramu,
Now working as Software Engineer in Quantiles Company, Bangalore,
Karnataka State.

_ Respondent / Appellant
AND

Yellamreddy Sruthi, W/o. R. Ramakanth Reddy, D/o. Y. Ramasubba Reddy,
R/o. D.No. 8-348, Guizarpet, Ananthapuramu Town, Ananthapuramu District.

_ Respondent / Respondant

Petition under Section 154 of c.P.O., 8 filed praying that in the
circumstances stated in the affidavit filed herein, the High Court may be
pleased to stay the operation of Decree and order passed by the Judge, Family
Court-cum-Additional District Judge, Ananthapuramu on 26/7/2019 in
F.C.O.P.No, 34 of 2016.

1ANO, 1 of 2021 i

Between ;

Yellamreddy Sruthi, W/o. R. Ramakanth Reddy, D/o. Y. Ramasubba Reddy,
R/o. B.No, 8-348, Guizarpet, Ananthapuramu Town, Ananthapuramu District.
. Petitioner 'Respondent / Respondent'
AND

Rangareddigari Ramakantha Reddy, 5/0, Late M.C. Ranga Reddy,
R/o. DING. 12-41-4282, Ashok Nagar, 1st Cross, Ananthapuramu

Now working as Software Engineer in Quantiles Company, Bangalore,
Karnataka State.

. Respondent / Appellant /Petitioner

Petition under Section 24 of Hindu Marriage Act, is filed praying that in the circumstances stated in the affidavit filed herein, the High Court may be pleased to direct the respondent to pay Rs.50,000/- per month towards maintenance of petitioner, pendente lite from the date of filing of appeal and Rs. 30,000/- towards legal and litigation expenses.

This appeal coming on for hearing, upon perusing the appeal and the grounds filed herein and upon hearing the arguments of Sri Seelam Krishna Reddy, Advocate for the Petitioner in LA.No. 1 of 2019 and respondent in ANG. 1 of 2021 and of Sri Virupaksha Dattatreya Gouda, Advocate for respondent in LA.No. 1 of 2019 and petitioner LANE, 1 of 2027, the Court made the following

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"For sake of convenience, the parties are hereinafter referred to , as

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mer their arrays in LANE.t of 2027.

The petitioner, who is wife of respondent, filed the present application seeking a direction to the respondent to pay maintenance @ Rs.30,000/- per month to her from the date of filing the present appeal,

Respondent filed F.C.O.P. No. 54 of 2016 on the file of the Family Court-cumadditional District Judge, Anantapuram against the petitioner seeking divorce. In the said F.C.G.P., the petitioner filed counter claim seeking restitution of conjugal rights. The trial Court, vide order dated 26.04.2019, dismissed the petition filed by the respondent and allowed the counter claim filed by the petitioner, with costs, quantified as Rs. 10,000/., directing the respondent to take back the petitioner to the matrimonial home within one month from the date of the said order. Aggrieved by the same, the respondent filed the aforesaid F.C.A. before this Court.

It is stated in the affidavit filed in support of the petition that the respondent has not complied with the order of the trial Court to take the petitioner to matrimonial home, and the petitioner is residing at the place of her parents and living at the mercy of her parents and she has no income and she is not in a position to maintain herself, and the respondent is working as Software Engineer drawing a salary of Rs.1,00,000/- per month,

On the other hand, fearne counsel for the respondent Sri S. Krishna Reddy would contend that due to Covid-19 pandemic, respondent lost his job and only in the month of March, 2021, he could secure some employment. He further submits that mother of the respondent is depending on the respondent and as such, he is not in a position to pay the arrears at a time.

Having regard to the facts in issue, the respondent shall pay maintenance @ Rs. 10,000/- (Rupees ten thousand) per month from the date of order in the F.C.O.P, No. 34 of 2078 fe. 26.71.2019 and continues to pay at the same rate on or before 5th of every succeeding month commencing from 05.03.2022. Insofar as arrears is concerned, having regard to the plea taken that the respondent was out of employment due to Covid-19 pandemic, the respondent shall pay 50% of the arrears from 36.14.2079 Hh 01.07.2027 within a period of three weeks from today, and for the remaining period at the rate of Rs. 10,000/- per month till 34.04.2022 within a period of six weeks thereafter, for the present,

| The petitioner shall immediately furnish her bank account number to the respondent.

On such deposit, the petitioner is at liberty to withdraw the same without furnishing any security, in case of default in payment of the amount, interim stay granted shall stand vacated and the petitioner is at liberty to take steps as contemplated under law for recovery of the amount,

Accordingly, the petitions are ordered, "

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1 The Judge, Family Court-cum-Additional District Judge, Ananthapuramnu.
2. One CC to Sri Sestam Krishna Raddy, Advocate(OPUC)

3. One CC to Sri Virupaksha Dattatreya Gouda, Advocate(OPUC)-

4 Two spare copies,

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HIGH COURT

CPK,J & ORLAMR J

DATED: 03-02-2022

ORDER

LANos, To of 2079 & 7 of 2024 FLCANG,. 173 of 2019 INTERIM DIRECTION